

**JOINT PETITION -
NONADVERSARIAL DIVORCE
(DISSOLUTION OF MARRIAGE)**

JD-FM-242 Rev. 4-26
C.G.S. § 46b-44a

*This form is available
in other languages*

STATE OF CONNECTICUT
JUDICIAL BRANCH
SUPERIOR COURT
www.jud.ct.gov



Instructions:

Complete this form and have it notarized. Attach: (1) a Financial Affidavit (form JD-FM-6-SHORT or JD-FM-6-LONG) from each petitioner, (2) Notice of Automatic Orders - Nonadversarial Divorce (form JD-FM-260), and (3) a completed Appearance (form JD-CL-12) from each petitioner. If you have a settlement agreement (form JD-FM-243) that you are asking the court to include in the divorce decree, you must also file that agreement with this joint petition. After you file this form and before the court orders a divorce decree, if either petitioner wants to stop this nonadversarial process, a petitioner must file with the clerk a Notice of Revocation (form JD-FM-245).

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NADJPET



Judicial District of	At (Town)	Case Type: Major <u>E</u> Minor <u>05</u>	Docket number
Name of Petitioner A (Last, First, Middle Initial)		Name of Petitioner B (Last, First, Middle Initial)	
Birth name of Petitioner A (If different from above)		Birth name of Petitioner B (If different from above)	
Address of Petitioner A (Number, street, town, state, and zip code)		Address of Petitioner B (Number, street, town, state, and zip code)	
Phone number of Petitioner A		Phone number of Petitioner B	
Date of marriage	Location of marriage (Town and State or Country)		

(Select all that apply)

- ☐ At least one petitioner has lived in Connecticut for at least 12 months immediately before the filing of this divorce joint petition or before the divorce will become final.
- ☐ At least one petitioner lived in Connecticut at the time of the marriage, moved away, and then returned to Connecticut, planning to live here permanently.
- ☐ The marriage broke down after at least one petitioner moved to Connecticut.

As of the time of filing of the joint petition in this action, the petitioners attest that the following conditions exist:

1. The marriage has broken down irretrievably;
2. The duration of the marriage does not exceed 9 years;
3. Neither petitioner is pregnant;
4. No children were born to or adopted by the petitioners prior to, or during, the marriage;
5. Neither petitioner has any interest or title in real property;
6. The total combined fair market value of all property owned by either petitioner, less any amount owed, is less than \$80,000;
7. Neither petitioner has a defined benefit pension plan;
8. Neither petitioner has a pending petition for relief under the United States Bankruptcy Code;
9. No other action for dissolution of marriage, civil union, legal separation or annulment is pending in this state or in a foreign jurisdiction; and
10. A restraining order, issued pursuant to section 46b-15 of the Connecticut General Statutes, or a protective order, issued pursuant to section 46b-38c of the Connecticut General Statutes, between the petitioners is not in effect.

Note: After the filing of the joint petition and before the court enters a divorce decree, if a change occurs to any of the conditions listed above, one or both of the petitioners shall notify the court immediately of the changed condition.



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Serviços de assistência linguística gratuitos estão à disposição

(Select all that apply) ☐ Petitioner A; ☐ Petitioner B; listed above has received from the State of Connecticut:
☐ financial support (Select one) ☐ Yes ☐ No ☐ Do not know
☐ HUSKY Health Insurance (Select one) ☐ Yes ☐ No ☐ Do not know
If yes, **you must** send a copy of this joint petition and any other documents filed with this joint petition to the Assistant Attorney General, 165 Capitol Avenue, Hartford, CT 06106, and file the *Certification of Notice (JD-FM-175)* with the court clerk.

(Select all that apply) ☐ Petitioner A; ☐ Petitioner B; listed above has received financial support from a city or town in Connecticut (Select one) ☐ Yes (State, City, or Town: _____) ☐ No ☐ Do not know
If yes, send a copy of this joint petition and any other documents filed with this joint petition to the City Clerk of the town providing assistance and file the *Certification of Notice (JD-FM-175)* with the court clerk.

The Court is asked to order a divorce (dissolution of marriage) and: (Select all that apply)

- ☐ The settlement agreement filed with this joint petition be incorporated by reference into the divorce decree (decree of dissolution).
- ☐ A name change to the birth or former name for Petitioner A to _____
- ☐ A name change to the birth or former name for Petitioner B to _____

Certification and Attestation

Both petitioners attest that:

1. They agree to proceed by consent and waive service of process;
2. Neither petitioner is acting under duress or coercion;
3. Each petitioner is waiving any right to **a trial, alimony, spousal support** or **an appeal**; and
4. The terms of any separation agreement filed with this joint petition are fair and equitable.

Petitioner A

I attest that the statements in this petition are true to the best of my knowledge and belief

Signature of Petitioner A

Print name of Petitioner A

Date signed

State of Connecticut, County of

ss.

On this the ____ day of _____, 20____, before me, _____, the undersigned officer, personally appeared _____, known to me (or satisfactorily proven) to be the person whose name is subscribed to the within instrument and acknowledged that he/she executed the same for the purposes therein contained, and swore under oath or affirmed and declared that the information stated on this Joint Petition is complete, true, and accurate.

In witness whereof I hereunto set my hand.

Signature of Clerk, Commissioner of Superior Court, or Notary Public

Date Commission Expires:

Petitioner B

I attest that the statements in this petition are true to the best of my knowledge and belief

Signature of Petitioner B

Print name of Petitioner B

Date signed

State of Connecticut, County of

ss.

On this the ____ day of _____, 20____, before me, _____, the undersigned officer, personally appeared _____, known to me (or satisfactorily proven) to be the person whose name is subscribed to the within instrument and acknowledged that he/she executed the same for the purposes therein contained, and swore under oath or affirmed and declared that the information stated on this Joint Petition is complete, true, and accurate.

In witness whereof I hereunto set my hand.

Signature of Clerk, Commissioner of Superior Court, or Notary Public

Date Commission Expires: